

fore new judges, is introductory of a new law, by having conuſance of error in the exchequer, which ſhall be reverſed in the exchequer chamber before the chancelour and treaſurer, or calling to them two judges, there the chancelour and treaſurer are only judges in the writ of error, and ſo in the like. But it is clear that the two juſtices in the ſtar-chamber are judges, and have voices, as it hath been often reſolved, and daily experience teacheth. And further to clear this point, if the juſtices ſhould be but aſſiſtants and no judges in the ſtar-chamber, for that they are to be called, &c. then, and for the ſame reaſon ſhould neither lord ſpiritual nor temporal, nor other of the privy counſell be judges, nor have voices in the court of ſtar-chamber. And therefore the ſudden opinion in 8 H. 7. and of others not obſerving the ſaid diſtinction between acts declaratory of proceedings in an ancient court, and acts introductory of a new law in raiſing of a new court, is both contrary to law, and continually experience.

8 H. 7. 13.
Flow. Com. 393.

The ſecond concluſion is, that the act of 3 H. 7. being in the affirmative is not in ſome things purſued. For where that act directeth that the bill or information ſhould be put to the lord chancelour, &c. all bills and informations in that court are conſtantly and continually directed to the kings majeſty, as they were before the ſaid act; and it is a good rule, that where the act of 3 H. 7. is not purſued, there (if there be many judiciall preſidents in another fort) they muſt have warrant from the ancient court; and yet it is good (as much as may be) to purſue this act, there being no greater aſſurance of juriſdiction then an act of parliament. And where there be no ſuch preſidents, then the ſtatute as to the judges muſt be purſued: and that was the reaſon that in default of others, Sir Chriſtopher Wray chief juſtice of England for a time was made lord privy ſeal to ſit in the ſtar-chamber, *ne curia deſiceret in juſtitia exhibenda*.

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Thirdly, that this act being (as hath been ſaid) in the affirmative, and enumerating divers particular offences, albeit (injuries) is a large word, yet that court hath juriſdiction of many other, as is manifeſt by authority, and daily experience, and this muſt of neceſſity be in reſpect of the former juriſdiction.

Fourthly, this act in one point is introductory of a new law, which the former court had not, viz. to examine the defendant, which being underſtood after his anſwer made, to be upon oath upon interrogatories, which this ancient court proceeding in criminal cauſes had not, nor could have but by act of parliament, or preſcription, the want whereof eſpecially in matters of frauds and deceits (being like birds cloſely hatched in hollow trees) was a mean that truth could not be found out, but before the ſtatute the anſwer was upon oath.

Fifthly, where it is ſaid in this act, And to puniſh them after their demerits after the form and effect of ſtatutes made, &c. The plaintife may chooſe whether he will inform upon ſuch ſtatutes as this act directeth, or for the offence at the common law, as he might have done before this act, which proveth that this act taketh not away the former juriſdiction.

6. Laſtly, that the juriſdiction of this court dealeth not with any offence, that is not *malum in ſe*, againſt the common law, or *malum prohibitum*, againſt ſome ſtatute.

It

It is to be observed that neither the statutes of 37 E. 3. ca. 18. 38 E. 3. cap. 9. 42 E. 3. ca. 3. 17 R. 2. ca. 6. nor any other statute taketh away the jurisdiction of any settled court of justice, neither is the court of star-chamber named in any of them, and yet was it a court then and before that time.

Divers speciall acts of parliament have been also jurisdiction to this court, viz. 12 R. 2. ca. 11. 2 R. 2. cap. 5. 13 H. 4. cap. 7. 33 H. 8. cap. 1. 4 & 5 Ph. and M. cap. 8. 5 Eliz. ca. 9, 10. & cap. 14. 27 Eliz. cap. 4.

And seeing the proceeding according to the laws and customes of this realm cannot by one rule of law suffice to punish in every case the exorbitancy and enormity of some great horrible crimes and offences, and especially of great men, this court dealeth with them, to the end that the medicine may be according to the disease, and the punishment according to the offence, *Ut pœna ad paucos, metus ad omnes perveniat*, without respect of persons, be they publique or private, great or small.

As for oppression, and other exorbitant offences of great men, (whom inferior judges and jurors (though they should not) would in respect of their greatnesse be afraid to offend) bribery, extortion, maintenance, champerty, imbracery, forgery, perjury, disseisers of false and dangerous rumours, news, and scandalous libelling, false and partiall misdemeanours of sherifs and bailiffs of liberties, frauds, deceits, great and horrible riots, routs, and unlawfull assemblies, single combats, challenges, duels, and other hainous and extraordinary offences and misdemeanours; but ordinary, and such offences as may be sufficiently and condignly punished by the proceeding of the common laws, this court leaveth to the ordinary courts of justice and dealeth not with them, *ne dignitas hujus curiæ vilesceret*, as before is said.

The proceeding in this court is by bill or information, by examination of the defendant upon interrogatories, and by examination of witnesses, and rarely *ore tenus*, upon the confession of the party in writing under his hand, which he again must freely confesse in open court, upon which confession in open court, the court doth proceed. But if his confession be set down too short, or otherwise then he meant, he may deny it, and then they cannot proceed against him but by bill or information, which is the fairest way.

The informations, bills, answers, replications, &c. and interrogatories are in English, and ingrossed in parchment, and filed up. All the writs and processe of the court are under the great seal: the sentences, decrees and acts of this court are ingrossed in a fair book with the names of the lords and others of the kings counsell and justices that were present and gave their voices.

In an information in this court by the attorney generall against Sir Stephen Procter, Birkenhead and others for conspiracy against, and scandall of the earl of Northampton, and Edward lord Wootton two of his majesties privy counsell: at the hearing of which cause there sat eight in court, and four of them condemned the defendant: and the lord chancelour, the two bishops, and the chancelour of the exchequer acquitted him. And the question was, whether the defendant should be condemned or no: and herein it was moved by the kings learned counsell, that when the voices be equal,

The jurisdiction
of this court

Camden Brit.
130. *In camera
stellata tractantur
criminalia, per-
juria, imposturae,
delus malis, ex-
cessus, &c.*

For proceeding,
ore tenus, see be-
fore ro. clauf.
17 H. 6. John
Fords case.
Rot. clauf.
42 E. 3. the ab-
bot of Brueries
case, &c. *In no-
serius ordo est or-
dinem juris non
servare.*

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Pasc. 12 Ja. Reg.